

## **UNIT-V**

### **LAW OF COPY RIGHTS**

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Fundamentals of copy right law, originality of material, rights of reproduction, rights to Perform the work publicly, copy right ownership issues, copy right registration, notice of Copy right, international copy right law

Law of patents: Foundation of patent law, patent searching process, ownership rights and Transfer. Patent law, intellectual property audits.

#### **INTRODUCTION:**

In ancient days creative persons like artists, musicians and writers made, composed or wrote their works for fame and recognition rather than to earn a living, thus, the question of copyright never arose. The importance of copyright was recognized only after the invention of printing press which enabled the reproduction of books in large quantity practicable.

#### **COPYRIGHT –DEFINITION:**

Copyright is a right of use given by the law to the creator of literary, dramatic, musical, artistic work , software etc for a limited period of time

In India all the law related to copyright is regulated by the copyright Act 1957. Its latest amendment was brought in 2012

A copyright is an exclusionary right. It conveys to its owner the right to prevent others from copying, selling, performing, displaying, or making derivative versions of a work of authorship.

#### **EXCLUSIVE COPYRIGHT RIGHTS**

The entire bundle of rights that a copyright owner is exclusively entitled to exercise under the copyright laws. These rights consists of:

- ☐ the right to reproduce (copy) the work
- ☐ the right to prepare derivative works
- ☐ the right to distribute copies of the work
- ☐ the right to perform the work, and
- ☐ the right to display the work.

**COPYRIGHT ACT, 1957:** Copyright Act refers to laws that regulate the use of the work of

a creator, such as an artist or author.

This includes copying, distributing, altering and displaying creative, literary and other types of work. Unless otherwise stated in a contract, the author or creator of a work retains the copyright.

Copyright does not ordinarily protect titles by themselves or names, short word combinations, slogans, short phrases, methods, plots or factual information.

### **NEED FOR COPYRIGHT:**

- ☐ It gives you the exclusive right to reproduce or copy the work or change its form.
- ☐ Registration informs the world that you own the work
- ☐ If you succeed in an infringement suit, you are entitled to money damages.

Indian perspective on Copyright Protection :

The Copyright Act, 1957 provides copyright protection in India. It confers copyright protection in the following two forms:

(a) Economic rights of the author

(b) Moral Rights of the author (i) Right of Paternity (ii) Right of Integrity

**TERM OF COPYRIGHT:** It varies according to the nature of work - 60 years, in India.

☐ Literary, dramatic, musical or artistic work (other than a ☐ photograph), when published during the lifetime of the author, copyright subsists during the lifetime of the author, plus 60 years.

☐ In the case of photographs, cinematograph films and sounds ☐ recordings; the term is 60 years from the date of publication.

☐ When the first owner of copyright is the government or a public ☐ undertaking, the term of copyright is 60 years from the date of publication.

### **THE FUNDAMENTALS OF COPYRIGHT**

Copyright is a right given by the law to creators of literary, dramatic, musical and artistic works and producers of cinematograph films and sound recordings. In fact, it is a bundle of rights including, inter alia, rights of reproduction, communication to the public, adaptation and translation of the work. It means the sole right to produce or reproduce the work or any substantial part thereof in any material form whatsoever (Kartar Singh Giani v. Ladha Singh & Others AIR 1934 Lah 777). Section 14 of the Act defines the term Copyright as to mean the exclusive right to do or authorise the doing of the following acts in respect of a work or

any substantial part thereof, namely

In the case of literary, dramatic or musical work (except computer programme):

- (i) reproducing the work in any material form which includes storing of it in any medium by electronic means;
- (ii) issuing copies of the work to the public which are not already in circulation;
- (iii) performing the work in public or communicating it to the public;
- (iv) making any cinematograph film or sound recording in respect of the work; making any translation or adaptation of the work. Further any of the above mentioned acts in relation to work can be done in the case of translation or adaptation of the work.

In the case of a computer programme:

- (i) to do any of the acts specified in respect of a literary, dramatic or musical work; and
- (ii) to sell or give on commercial rental or offer for sale or for commercial rental any copy of the computer programme. However, such commercial rental does not apply in respect of computer programmes where the programme itself is not the essential object of the rental.

In the case of an artistic work:

- (i) reproducing the work in any material form including depiction in three dimensions of a two dimensional work or in two dimensions of a three dimensional work;
- (ii) communicating the work to the public;
- (iii) issuing copies of work to the public which are not already in existence;
- (iv) including work in any cinematograph film; making adaptation of the work, and to do any of the above acts in relation to an adaptation of the work.

In the case of cinematograph film and sound recording:

- (i) making a copy of the film including a photograph of any image or making any other sound recording embodying it;
- (ii) selling or giving on hire or offer for sale or hire any copy of the film/sound recording even if such copy has been sold or given on hire on earlier occasions; and
- (iii) communicating the film/sound recording to the public.

In the case of a sound recording:

- (i) To make any other sound recording embodying it •
- (ii) To sell or give on hire, or offer for sale or hire, any copy of the sound recording
- (iii) To communicate the sound recording to the public

### **ORIGINALITY OF MATERIAL**

There are three basic requirements for copyright ability:

- ☐ A work must be original
- ☐ A work must be fixed in a tangible form of expression; and
- ☐ A work must be a work of authorship

To be eligible for copyright protection, material must be original, meaning that it must have been independently created and must possess a modicum of creativity. The requirement of originality should not be confused with novelty, worthiness, or aesthetic appeal. The requirement is rather that the material must be an independent product of the author and not merely some copy or minimal variation of an existing work. A work can be original even if it is strikingly similar or identical to that of another. The Copyright Act only requires originality, meaning independent creation by the author.

Originality does not signify novelty; a work may be original even though it closely resembles other works so long as the similarity is fortuitous, not the result of copying.

To illustrate, assume that two poets, each ignorant of the other, compose identical poems. Neither work is novel, yet both are original, and, hence, copyrightable. “Originality” thus does not mean “first”; it merely means “independently created” rather than copied from other works.

### **Fixation of Material:**

The Copyright Act protects works of authorship that are “fixed in any tangible medium of expression.” A work is “fixed” when it is embodied in a copy or phonorecord and is sufficiently permanent or stable to permit it to be perceived, reproduced, or communicated for a period of more than transitory duration.

There are thus two categories of tangible expression in which works can be fixed: “copies” and “phonorecords.”

- ☐ A copy is a material object from which a work can be perceived, reproduced, or communicated, either directly by human perception or with the help of a machine.

□ A phonorecord is a material object in which sounds are fixed and from which the sounds can be perceived, reproduced, or communicated either directly by human perception or with the help of a machine.

Works of Authorship: (17 U.S.C §102)

□ The copyright act provides that copyright protection subsists [support oneself] in original works of authorship fixed in any tangible medium of expression, now known or

hereafter developed, from which they can be perceived, reproduced or otherwise communicated either directly or with the aid of a machine.

□ 17 U.S.C. § 102. Section 102 then lists eight categories of protectable works. The list is preceded by the phrase that works of authorship “include” those categories, demonstrating that the listed categories are not the only types of works that can be protected, but are illustrative only.

The eight enumerated categories are as follows:

1. Literary works,
2. Musical works (including accompanying words)
3. Dramatic works (including accompanying music)
4. Pantomimes and choreographic works
5. Pictorial, graphic, and sculptural works
6. Motion pictures and other audiovisual works
7. Sound recordings
8. Architectural works

Rights of Reproduction:

The most fundamental of the rights granted to copyright owners is the right to reproduce the work

□ A violation of the copyright act occurs whether or not the violator profits by the reproduction

□ Only the owner has the right to reproduce the work

□ Secretly taping a concert, taking pictures at a performance, or recording all violate the owner’s right to reproduce

□ The suggestion of congress, in 1978 a group of authors, publishers and users established a not-for-profit entity called Copyright Clearance Center [CCC]

- CCC grants licenses to academic, government and corporate users to copy and distribute the works
- It collects royalty fees, which are distributed to the authors
- Companies that photocopy articles from journals and magazines often enter into licensing arrangements with the CCC so they can make copies.

Rights to prepare Derivative works:

- Section 106 of the copyright Act provides that the owner of a copyright has the exclusive right to prepare derivative works based upon the copyrighted work
- This right is often referred to as the right to adapt the original work

New material represents original work of authorship

### **DEFINITION:**

“A derivative work is broadly defined as a work based upon one or more preexisting works, such as a translation, dramatization, fictionalized motion pictures version, abridgment condensation or any other form in which a work may be recast, transformed, or adapted.

a work consisting of editorial revisions, annotations, elaborations, or other modifications is also a derivative work

Rights of distribution and the first sale doctrine:

- Section 106 (3) of the copyright act provides that the owner of a copyright has the exclusive right to distribute copies or phonorecords of the work to the public by sale or other transfer of ownership
- A violation of the distribution right can arise solely from the act of distribution itself
- The distributor did not make an unlawful copy or the copy being distributed was unauthorized
- Thus, blockbuster videos to be reliable for violating an owner's right to distribute
- Once the author has parted with ownership of copyrighted material, the new owner of a lawfully made copy can treat the object as his or her own
- The new owner has the right to lend the book or movie to a friend, resell the work at a garage sale, or even destroy it.
- The first sale doctrine does not apply to or limit the author's exclusive right to prepare derivative works or rights of public performance and

□ Without permission of authorship the goods are not permitted to imported into the U.S.

## **RIGHTS TO PERFORM THE WORK PUBLICLY**

□ Section 106 [5] of the Copyright Act provided that in the case of all copyrighted works other than sound recording & works of architecture, the copyright owner has the exclusive right to display the work publicly.

□ A display is “public” under the same circumstances in which a performance is “public”.

Ownership of a physical object is separate and distinct from ownership of the copyright embodied in the material object

Namely if it occurs at a place open to the public (or) at a place where a substantial number of persons outside of the normal circle of a family

## **Copyright Ownership Issues**

□ Copyright in a work protected under the copyright activists [provide with power and authority] in the author or authors of the work

□ Issues about ownership arise when more than one person creates a work

□ Unless copyright has been explicitly conveyed with those physical articles, the original authors generally retain all other rights associated with the works.

Joint Works [intent to create a unitary whole]

□ A joint work is a work prepared by two or more authors with the intention that their contributions be merged into inseparable or interdependent parts of a unitary whole.

□ One copyright exists in the created works

□ Joint authors are those who “mastermind” or “supermind” the creative effort.

## **Ownership Rights in Joint Works**

□ If individual are authors of a joint work, each owns an equal undivided interest in the copyright as a tenant in common, [each has the right to use the work, prepare derivative works, display it without seeking the other coauthor’s permission].

□ If profits arise out of such use, an accounting must be made so, that each author shares in the benefits or proceeds.

□ The death of a coauthor, his or her rights pass to heirs who then own the rights in

common with the other coauthor.

### **Ownership in Derivative or Collective Works**

- ☐ The author of the original book has rights only to his or her work and cannot reproduce or perform the derivative work without permission.
- ☐ If a work such as a book is created by one person who intends it to be complete at the time and illustrations are later added to it by another, the work cannot be a joint work because there was no intention of the parties to create a unitary whole at the time of their creation.
- ☐ The author of the derivative work cannot create further works based on the original book without permission and cannot reproduce the original work without permission.
- ☐ Multiple ownership rights may also arise if separately copyrightable works are compiled into a collection.

For Example: If essays written by Jerry Seinfeld, Ellen DeGeneres, and Paul Reiser are collected into a humor anthology by Bill Jones (with permission of the original authors), the original authors retain their exclusive rights (such as rights to reproduce, distribute, and perform) in their respective essays. No joint work is created because there was no intent at the time the separate essays were created to merge them into a unitary whole. No derivative work is created because the original works have not been transformed in any way and nothing new has been added to them. The anthology by the compiler, Bill Jones, is a collective work and pursuant to section 201(c) of the act, Jones acquires only the right to reproduce and distribute the contributions as part of the particular collective work or any revision of the collective work .

### **Works Made for Hire**

- ☐ The general rule is that the person who creates a work is the author of that work and the owner of the copyright therein, there is an exception to that principle: the copyright law defines a category of works called works made for hire.
- ☐ If a work is “made for hire”, the author is considered to be the employer or commissioning party and not the employee or the actual person who created the work
- ☐ The employer or commissioning party may be a company or an individual.
- ☐ There are two types of works that are classified as works made for hire; works



prepared by an employer within the scope of employment and certain categories of specially ordered or commissioned works.

### **Copyright Registration**

- ☐ A work is “created” when it is fixed in a copy or phonorecord for the first time.
- ☐ Although not required to provide copyright protection for a work, registration of copyright with the Copyright Office is expensive, easy and provides several advantages, chiefly, that registration is a condition precedent for bringing an infringement suit for works of US origin.
- ☐ To register a work, the applicant must send the following three elements to the Copyright Office: a properly completed application form, a filing fee, and a deposit of the work being registered.
- ☐ Registration may be made at any time within the life of the copyright

### **THE APPLICATION FOR COPYRIGHT REGISTRATION**

- ☐ The following persons are entitled to submit an application for registration of copyright:
  - ☐ the author (either the person who actually created the work or, if the work is one made for hire, the employer or commissioning party)
  - ☐ the copyright claimant (either the author or a person or organization that has obtained ownership of all of the rights under the copyright originally belonging to the author, such as a transferee)
  - ☐ the owner of exclusive right, such as the transferee of any of the exclusive rights of copyright ownership (for example, one who prepares a movie based on an earlier book may file an application for the newly created derivative work, the movie); and
  - ☐ the duly authorized agent of the author, claimant, or owner of exclusive rights (such as an attorney, trustee, or any one authorized to act on behalf of such parties)

### **Application Forms**

- ☐ The Copyright Office provides forms for application for copyright registration.
- ☐ Each form is one 8½ by 11” (inches) sheet, printed front and back.
- ☐ An applicant may use photocopies of forms

- The Copyright Office receives more than 6,00,000 applications each year, each application must use a similar format to ease the burden of examination.
- The type of form used is dictated by the type of work that is the subject of copyright. For example: One form is used for literary works, while another is used for sound recording. Following are the forms used for copyright application.
- Form TX (Literary works, essays, poetry, textbooks, reference works, catalogs, advertising copy, compilations of information, and computer programs)
- Form PA (Pantomimes, choreographic works, operas, motion pictures and other audio visual works, musical compositions and songs.
- Form VA (Puzzles, greeting cards, jewelry designs, maps, original prints, photographs, posters, sculptures, drawings, architectural plans and blueprints.
- Form SR (Sound recording)
- Form SE (periodicals, news papers magazines, newsletter, annuals and Journals.Etc.

### **NOTICE OF COPYRIGHT**

- Since March 1, 1989 (the date of adherence by the United States to the Berne Convention), use of a notice of copyright (usually the symbol © together with the year of first publication and copyright owner's name) is no longer mandatory, although it is recommended and offers some advantages.
- Works published before January 1, 1978, are governed by the 1909 copyright Act.
- Under that act, if a work was published under the copyright owner's authority without a proper notice of copyright, all copyright protection for that work was permanently lost in the United States.
- With regard to works published between January 1, 1978, and March 1, 1989, omission of a notice was generally excused if the notice was omitted from a smaller number of copies, registration was made within five years of publication, and a reasonable effort was made to add the notice after discovery of its omission.

### **INTERNATIONAL COPYRIGHT LAW**

- Developments in technology create new industries and opportunities for reproduction and dissemination of works of authorship.
- A number of new issues have arisen relating to the growth of electronic publishing, distribution, and viewing of copyrighted works.

□ Along with new and expanded markets for works comes the ever-increasing challenge of protecting works from piracy or infringement.

□ Copyright protection for computer programs

□ Copyright protection for Automated Databases

□ Copyright in the Electronic Age

□ The Digital Millennium Copyright Act

## **PATENTS**

A patent is a government granted right for a fixed time period to exclude others from making, selling, using, and importing an invention, product, process or design, or improvements on such items. These exclusive, monopoly rights are powerful, and in return the inventor is required to describe the invention in writing. The end result is simply a written description, accompanied by diagrams and drawings, that explains the invention. The public benefits because anyone can read the details of the invention and improve upon it. Importantly, the patent not only allows the public to gain an understanding of the invention, but also defines its limits. Once the patent term expires (generally 20 years from the application filing date), the technology covered by the patent becomes a part of the public domain and is essentially free to use by the public.

### **Types of Patents**

Generally, there are three main types of patents: utility patents, design patents and plant patents.

1) Utility Patent – When most people think of patents, they are referring mainly to utility patents. A utility patent is a patent that covers inventions, whether it's an innovative software process, a new product that is distinct from prior art, or an improvement to a car engine. A utility patent can be granted for any new, useful, and non-obvious process or product.

2) Design Patent – A design patent covers a new and original ornamental design of a product. In other words, a design patent protects the look of a product. Examples of products protected by design patents include jewelry and watches, electronic devices, computer icons, and beverage containers. A design patent consists of numerous drawings that show a product from various angles and contains very little written description, if any.

3) Plant Patents - Plant patents were first created by the Patent Act of 1930, which had been proposed by Luther Burbank to protect new species of asexually reproduced plants, mostly

flowers. These are different than the utility patents granted to bioengineered plants used in agriculture. The United States was the first country in the world to grant plant patents, and even today many countries continue to deny protection for plants. Indeed, even some signatories to the Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) administered by the World Trade Organization (WTO) reserve the right to deny patents for plants.

To be patentable, plants must be cultivated rather than found in the wild, and plant patents are granted only to protect a new, distinct, and non-obvious variety of asexually reproduced plant—i.e., those grown not with seeds but by grafting, budding, or cutting. A plant need not be useful to qualify for a patent, but it must be distinctive in its color, habit, soil, flavor, productivity, form, or other aspects.

## **FOUNDATION OF PATENT LAW**

The main motive behind patent was to encourage scientific research, new technology and industrial progress. Patent law grants a monopoly to the inventor to use their patented product and allow the use of the same to someone with prior permission against certain consideration. Patent confers the right to manufacture, use, offer for sale, sell or import the invention for the prescribed period to the inventor. In short, the patent owner has the exclusive right to prevent or stop others from commercially exploiting the patented invention. Patent protection means that the invention cannot be commercially made, used, distributed, imported or sold by others without the patent owner's consent. It protects against infringement of the patent i.e. if someone tries to replicate the invention or invents against an existing patent the original inventor can enforce their right against such duplicate product.

There is some evidence that some form of patent rights was recognized in Ancient Greece. In 500 BCE, in the Greek city of Sybaris (located in what is now southern Italy), "encouragement was held out to all who should discover any new refinement in luxury, the profits arising from which were secured to the inventor by patent for the space of a year." Athenaeus, writing in the third century CE, cites Phylarchus in saying that in Sybaris exclusive rights were granted for one year to creators of unique culinary dishes.

In England, grants in the form of letters patent were issued by the sovereign to inventors who petitioned and were approved: a grant of 1331 to John Kempe and his company is the earliest authenticated instance of a royal grant made with the avowed purpose of instructing the

English in a new industry. These letters patent provided the recipient with a monopoly to produce particular goods or provide particular services.

The first extant Italian patent was awarded by the Republic of Venice in 1416 for a device for turning wool into felt. Soon thereafter, the Republic of Florence granted a patent to Filippo Brunelleschi in 1421. Specifically, the well-known Florentine architect received a three-year patent for a barge with hoisting gear, that carried marble along the Arno River.

Patents were systematically granted in Venice as of 1450, where they issued a decree by which new and inventive devices had to be communicated to the Republic in order to obtain legal protection against potential infringers. The period of protection was 10 years. These were mostly in the field of glass making. As Venetians emigrated, they sought similar patent protection in their new homes. This led to the diffusion of patent systems to other countries. The Venetian Patent Statute, issued by the Senate of Venice in 1474, and one of the earliest patent systems in the world.

King Henry II of France introduced the concept of publishing the description of an invention in a patent in 1555. The first patent "specification" was to inventor Abel Foullon for "Usaige & Description de l'holmetre", (a type of rangefinder.) Publication was delayed until after the patent expired in 1561. Patents were granted by the monarchy and by other institutions like the "Maison du Roi" and the Parliament of Paris. The novelty of the invention was examined by the French Academy of Sciences. Digests were published irregularly starting in 1729 with delays of up to 60 years. Examinations were generally done in secret with no requirement to publish a description of the invention. Actual use of the invention was deemed adequate disclosure to the public.

The English patent system evolved from its early medieval origins into the first modern patent system that recognised intellectual property in order to stimulate invention; this was the crucial legal foundation upon which the Industrial Revolution could emerge and flourish. By the 16th century, the English Crown would habitually grant letters patent for monopolies to favoured persons (or people who were prepared to pay for them). Blackstone (same reference) also explains how "letters patent" (Latin *literae patentēs*, "letters that lie open") were so called because the seal hung from the foot of the document: they were addressed "To all to whom these presents shall come" and could be read without breaking the seal, as opposed to "letters close", addressed to a particular person who had to break the seal to read

them.

This power was used to raise money for the Crown, and was widely abused, as the Crown granted patents in respect of all sorts of common goods (salt, for example). Consequently, the Court began to limit the circumstances in which they could be granted. After public outcry, James I of England was forced to revoke all existing monopolies and declare that they were only to be used for "projects of new invention". This was incorporated into the 1624 Statute of Monopolies in which Parliament restricted the Crown's power explicitly so that the King could only issue letters patent to the inventors or introducers of original inventions for a fixed number of years. It also voided all existing monopolies and dispensations with the exception of the sole working or making of any manner of new manufactures within this realm to the true and first inventor and inventors of such manufactures which others at the time of making such letters patent and grants shall not use...

The Statute became the foundation for later developments in patent law in England and elsewhere.

James Puckle's 1718 early autocannon was one of the first inventions required to provide a specification for a patent.

Important developments in patent law emerged during the 18th century through a slow process of judicial interpretation of the law. During the reign of Queen Anne, patent applications were required to supply a complete specification of the principles of operation of the invention for public access. Patenting medicines was particularly popular in the eighteenth century and then declined. Legal battles around the 1796 patent taken out by James Watt for his steam engine, established the principles that patents could be issued for improvements of an already existing machine and that ideas or principles without specific practical application could also legally be patented.

This legal system became the foundation for patent law in countries with a common law heritage, including the United States, New Zealand and Australia. In the Thirteen Colonies, inventors could obtain patents through petition to a given colony's legislature. In 1641, Samuel Winslow was granted the first patent in North America by the Massachusetts General Court for a new process for making salt.

Towards the end of the 18th century, and influenced by the philosophy of John Locke, the granting of patents began to be viewed as a form of intellectual property right, rather than

simply the obtaining of economic privilege. A negative aspect of the patent law also emerged in this period - the abuse of patent privilege to monopolise the market and prevent improvement from other inventors. A notable example of this was the behavior of Boulton & Watt in hounding their competitors such as Richard Trevithick through the courts, and preventing their improvements to the steam engine from being realized until their patent expired.

During the British reign in India, the Act VI of 1856 granted protection of inventions based to inventors of new manufacturers for a period of 14 years. It underwent many modifications thereafter and in 1911 Indian Patents & Designs Act was enacted. Then again modifications took place and the present Patents Act, 1970 came into force in the year 1972, amending and consolidating the existing law relating to Patents in India. The Patents Act, 1970 was again amended by the Patents (Amendment) Act, 2005(1), wherein product patent was allowed against all fields of technology including food, drugs, chemicals and microorganisms. The new law allows compulsory grant of patent except in prohibited cases as done earlier. The new amendment of 2005 also included pre-grant and post-grant opposition. A patent application in India can be filed either individually or jointly, by true and first inventor of the assignee.

## **PATENT SEARCH**

Patent search is a search of the patent database to determine if there are any patent application similar or identical to an invention that is to be patented. Patent search can be done to improve the chances of obtaining a patent registration or to find information about new inventions that have patent protection.

Before filing a patent application, a patent search can help with different objectives like:

- ☐ Determining the probability of having a patent granted to a proposed invention.
- ☐ Determining the claims to be filed in the patent application.
- ☐ Determining the freedom to operate.
- ☐ Determining whether a granted patent can be invalidated.
- ☐ Knowing more about similar inventions and status of similar patent filings.

The Seven Steps in a Preliminary Search of U.S. Patents and Published Patent Applications

1. Brainstorm terms to describe your invention based on its purpose, composition and use.
2. Use these terms to find initial relevant Cooperative Patent Classifications using the USPTO

website's Classification Text Search Tool

(<https://www.uspto.gov/web/patents/classification/>) Enter the keyword or keywords you wish to search in the Search Tool box. For example, if you were trying to find CPC Classifications for patents related to umbrellas, you would enter "umbrella". The default search system is CPC, Cooperative Patent Classification, so the button "All CPC" is selected. Click on the "Search" button. Scan the resulting classification's Class Schemes (class schedules) to determine the most relevant classification to your invention. If you get zero results in your Classification Text search, consider substituting the word(s) you are using to describe your invention with synonyms, such as the alternative terms you came up with in Step 1.

3. Verify the relevancy of CPC classification you found by reviewing the CPC Classification Definition linked to it (if there is one).

4. Retrieve U.S. patent documents with the CPC classification you selected in the PatFT (Patents Full-Text and Image) database (<http://patft.uspto.gov>). Review and narrow down the most relevant patent publications by initially focusing on the front page information of abstract and representative drawings.

5. Using this selected set of most relevant patent publications, review each one in-depth for similarity to your own invention, paying close attention to the additional drawings pages, the specification and especially the claims. References cited by the applicant and/or patent examiner may lead you to additional relevant patents.

6. Retrieve U.S. published patent applications with the CPC classification you selected in Step 3 in the AppFT (Applications Full-Text and Image) database (<http://appft.uspto.gov>). Use the same search approach used in Step 4 of first narrowing down your results to the most relevant patent applications by studying the abstract and representative drawings of each on its front page. Then examine the selected published patent applications closely, paying close attention to the additional drawings pages, the specifications and especially the claims.

7. Broaden your search to find additional U.S. patent publications using keyword searching in PatFT or AppFT databases, classification searching of non-U.S. patents on the European Patent Office's Espacenet patent database (<http://worldwide.espacenet.com>) and searching non-patent literature disclosures of inventions using the free electronic and print resources of your nearest Patent and Trademark Resource Center

(<http://www.uspto.gov/ptrc>).



## **Patent search in India**

There is no cost for doing a patent search in India. A patent search can be done through the Patent database of India available at: <http://ipindiaservices.gov.in/publicsearch>.

Depending on the status of a patent application, a patent search can be done under two publication types: published or granted. The user can choose the desired publication type by clicking on the checkbox. The user can view many categories like

- ☐ Application Date
- ☐ Title
- ☐ Abstract
- ☐ Complete Specification
- ☐ Application Number
- ☐ Patent Number
- ☐ Applicant Number
- ☐ Patent Number
- ☐ Applicant number
- ☐ Applicant Name
- ☐ Inventor Name
- ☐ Inventor Country
- ☐ Inventor Address
- ☐ Filing office
- ☐ PCT Application Number
- ☐ PCT Publication number

The entire category has a drop down box from which the user has access to change the category. There is a search box next to every category where the user can enter the keyword of the patent that he wants to view. By entering a query in more than one box, the applicant can run very precise patent searches. Once the required keywords are entered in the respective boxes, there is a captcha code the user has to clear.

## **Patent Information**

Once the code is entered, there are a number of relevant patent results for the patent search query that the user has entered. On selecting an application, the document opens with the Application Number, Title, Application Date and Status. The user can get further details

about the patent by clicking on the Application Number, Title, Application Date and Status.

Through patent search, the applicant can find the following information about the patent:

- ☐ Invention title
- ☐ Publication Number
- ☐ Publication Date
- ☐ Publication Type
- ☐ Application Number
- ☐ Application Filing Date
- ☐ Priority Number
- ☐ Priority Country
- ☐ Priority Date
- ☐ Field of Invention

Classification

Inventor Name, Address, Country, Nationality

Applicant Name, Address, Country, Nationality

When each column is selected, the patent application's details about that section can be known by the user. When a user selects application number details like Invention Title, Publication number, date, type, etc. There are separate columns that give the user the inventor's and the applicant's Name, Address, Country, and Nationality.

### **Patent Status**

There is an Abstract column which has a summary of the patent application that the user can view. Under this, there is a complete specification that gives the details about the specification if the user has mentioned any. At the end, there is an option through which the user can view the application status. When it is opened, the user can get the application details.

for use in the settlement of IP claims in particular, but could be adapted to be used for settlement of other types of claim. Longer form pre-action and post-commencement of proceedings settlement agreement Precedents containing more detailed provisions are also available.

## **OWNERSHIP RIGHTS**

### **Right to exploit the patent**

If the invention is a product, the patent confers the exclusive right to make, use, sell or import for these purposes, the invention in India. If the patent is for a method or process of manufacturing an article or substance, it confers the exclusive right to use or exercise the method or process in India. The patentee has the right to prevent third parties, from exploiting the patented invention in any such manner without the consent of the patentee. The term of every patent granted under the IPA is twenty years from the date of filing of the application for the patent. This includes the patents, which had not expired when the IPA came into force i.e. on May 20, 2003. It is necessary to renew the patent annually on payment of fee for it to remain valid throughout its term of 20 years. Failure to renew the patent results in loss of all patent rights.

### **Right to grant licence**

The patentee has the power to assign rights or grant licenses or enter into another arrangement for a consideration. A licence or an assignment to be valid must be in writing and registered with the Controller of Patents.

### **Right to surrender**

The patentee is given the right to surrender the patent at any time by giving notice in the prescribed manner to the Controller. The Controller, before accepting the offer of surrender will advertise the same so as to give an opportunity to the interested parties to oppose the offer of surrender.

### **Right to sue for infringement**

A patentee is given the right to institute proceedings for infringement of the patent in a District Court having jurisdiction to try the suit.

## **TRANSFERRING IP RIGHTS**

patent is an exclusive property of the inventor and hence can be transferred from the original patentee to any other person by assignment, grant of licence, or operation of law.

The IPA requires that an assignment, licence or a creation of any other interest in a patent must be in writing, clearly specifying all the terms and conditions governing the rights and obligations of the parties. This document must be registered in the prescribed manner within the prescribed time. The person getting such entitlement in a patent has to apply in writing to the Controller for the registration of the title.

An assignment means transfer of interest in the patent by the patentee to another person in whole or in part valid over entire or a part of India. The person to whom the right in patent is assigned is called the assignee and the person who assigns the right is called the assignor.

**There are three kinds of assignment:**

### **Legal assignment**

When the assignor assigns the right in a patent through an agreement duly registered, the assignment is called a legal assignment and the assignee's name will be entered in the Register of Patents maintained by the Patent Office as the proprietor of the patent. The legal assignee shall thereafter have all the rights conferred by the assignor.

### **Equitable assignment**

When the patentee agrees to give another person certain defined right in the patent with immediate effect, by a document (e.g. a letter), and not by an agreement, the assignment is termed as an equitable assignment. However, such an assignment cannot be registered in the Register of Patents. The assignee can convert the equitable assignment to legal assignment by getting the document in writing and getting it duly registered.

### **Mortgage**

When the patentee transfers the patent rights either wholly or in part to the mortgagee to secure a specified sum of money, such assignment is called mortgage. The patentee

can get the patent re-transferred on refund of the consideration money.

## **Patent Law**

### **Introduction**

Patent law deals with the protection of inventions by granting exclusive rights to inventors. In India, patents are governed by the **Patents Act, 1970**, which provides legal protection to inventions and encourages technological innovation and industrial development.

A patent grants the inventor the exclusive right to make, use, sell, or distribute the invention for a limited period of **20 years** from the date of filing.

### **Meaning of Patent**

A patent is a statutory right granted to an inventor for a new invention, which prevents others from making, using, selling, or importing the invention without the inventor's consent.

The authority responsible for granting patents in India is the **Indian Patent Office**.

### **Essential Conditions for Patentability**

For an invention to be patentable under the **Patents Act, 1970**, it must satisfy the following conditions:

#### **1. Novelty**

The invention must be **new** and not previously published or known anywhere in the world.

#### **2. Inventive Step**

The invention must involve a **technical advancement** or an improvement that is not obvious to a person skilled in that field.

#### **3. Industrial Applicability**

The invention must be **capable of being used in industry or manufacturing**.

### **Procedure for Grant of Patent**

The procedure for obtaining a patent generally involves the following steps:

1. Filing of patent application
2. Publication of application
3. Request for examination
4. Examination by patent examiner
5. Grant of patent if requirements are satisfied

## **Rights of Patentee**

Once the patent is granted, the patentee has the following rights:

- Right to make the invention
- Right to use the invention
- Right to sell or license the invention
- Right to prevent others from unauthorized use

## **Intellectual Property Rights (IPR) Audits –**

### **Introduction**

An **Intellectual Property Rights (IPR) Audit** is a systematic review and evaluation of a company's intellectual property assets. The purpose of the audit is to identify, protect, manage, and maximize the value of intellectual property such as patents, trademarks, copyrights, and trade secrets.

IPR audits help organizations ensure that their intellectual property is properly protected under laws such as the **Patents Act, 1970**, the **Trade Marks Act, 1999**, and the **Copyright Act, 1957**.

### **Meaning of IPR Audit**

An **IPR audit** is the process of examining and evaluating the intellectual property owned, used, or acquired by an organization in order to determine its value, legal status, and potential risks.

It involves identifying intellectual property assets and ensuring that they are properly registered, protected, and used.

### **Objectives of IPR Audit**

1. **Identification of IP Assets** – To identify patents, trademarks, copyrights, and trade secrets owned by the organization.
2. **Protection of IP Rights** – To ensure that intellectual property is properly registered and protected.
3. **Risk Management** – To detect possible infringement or misuse of intellectual property.
4. **Valuation of IP Assets** – To assess the commercial value of intellectual property.
5. **Compliance with Law** – To ensure compliance with relevant intellectual property laws.

## **Types of IPR Audits**

### **1. General Purpose Audit**

Conducted to review all intellectual property assets of a business and ensure they are properly protected.

## **2. Due Diligence Audit**

Conducted during mergers, acquisitions, or licensing agreements to assess the IP assets of a company.

## **3. Limited Purpose Audit**

Conducted for specific issues such as litigation, licensing, or infringement disputes.

### **Importance of IPR Audit**

- Helps in **effective management of intellectual property assets**
- Prevents **legal disputes and infringement issues**
- Enhances **commercial value of intellectual property**
- Assists in **business planning and strategic decisions**